

COMPLAINT NUMBER: 2026-0392459

WARRANT NUMBER: GS1117235

PROSECUTOR: Carmelo F Ferrara

DEFENDANT: Saw K Htet

VICTIM:

STATE OF TENNESSEE, COUNTY OF DAVIDSON

AFFIDAVIT

Driving Under the Influence

55-10-401*1

Personally appeared before me, the undersigned, [Select one] X Commissioner Metropolitan General Sessions Judge, the prosecutor named above and made oath in due form of law that [Select one] X he she [Select one] personally observed X has probable cause to believe that the defendant named above on 06/26/2026 in Davidson County, did unlawfully drive or was in physical control of any automobile or other motor driven vehicle on any of the public roads and highways of the state, or on any streets or alleys, or while on the premises of any shopping center, trailer park, or apartment house complex, or any other premises that is generally frequented by the public at large while [Select one] X under the influence of any intoxicant, marijuana, controlled substance, controlled substance analogue, drug, substance affecting the central nervous system, or combination thereof that impairs the driver's ability to safely operate a motor vehicle by depriving the driver of the clearness of mind and control of oneself that the driver would otherwise possess X the alcohol concentration in the person's blood or breath is eight hundredths of one percent (0.08%) or more the blood alcohol concentration is four hundredths of one percent (.04%) or more and the vehicle is a commercial motor vehicle.

The probable cause is as follows:

On 6/26/2026 Officers were dispatched to an officer involved collision involving the defendant. Upon arrival to the scene officers began their investigation by speaking with the defendant. While speaking with the defendant officers noticed the defendant's pupils were pinpoint and an aroma of alcohol was coming from the defendant's breath. Officers asked the defendant if he had been drinking, and the defendant answered "yes." When asked where the defendant stated at his home. With the admission to the drinking officers conducted standard field sobriety test. The defendant showed multiple indicators during the test. Indicators include lack of smooth pursuit, distinct and sustained nystagmus at maximum deviation, and onset of nystagmus prior to 45 degrees for the Horizontal Gaze Nystagmus Test. The defendant could not keep his balance, stepped off the line, used his arms for balance, improper turn, and incorrect number of steps for the Walk and Turn Test. The defendant was swaying, and used his arms for balance for the One Leg Stand Test. All these were indicators of impairment for being under the influence of alcohol. During the test the defendant also admitted to smoking marijuana earlier in the day. Further more during the initial search of the defendant, the defendant reached into his left pocket in his pants and threw a plastic cylinder in the grass. Officers retrieved the cylinder to find that it was a smoked pre-rolled THC blunt. Officers concluded at the completion of the investigation there was enough probable cause to place the defendant under arrest for DUI and evidence tampering. Officers transported the defendant to booking without incident

ESignature

Prosecutor: Carmelo F Ferrara 100005771

ARREST WARRANT

Information on oath having been made, that on the day and year aforesaid, and in the County aforesaid, the offense

of Driving Under the Influence A MISD, as aforesaid, has been committed and charging the defendant thereof, you are therefore commanded, in the name of the State, forthwith to arrest and bring the defendant before a judge of the Court of General Sessions of Davidson County, Tennessee, to answer the above charge.

Sworn to and subscribed before me on 06/26/2026 16:32:00 .

Umeka M Foreman

Judge of the Metropolitan General Sessions Court/Commissioner

If the defendant's charge is dismissed, a no true bill is returned by a grand jury, the defendant is arrested and released without being charged with an offense, or the court enters a nolle prosequi in the defendant's case, the defendant is entitled, upon petition by the defendant to the court having jurisdiction over the action, to the removal and destruction of all public records relating to the case without cost to the defendant.

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